SERVICE AGREEMENT

This Service Agreement (hereinafter "**Agreement**") is entered on 28th March 2023 and shall be effective from 21st March 2023("**Effective Date**").

By and Between

Ashoka Women's Engineering college, with its campus at

ASHOKA WOMEN'S ENGINEERING COLLEGE (hereinafter referred to as "**Institution/Service Provider**", which expression shall, unless repugnant to the meaning or context thereof, be deemed to include its legal representatives and permitted assigns) of the of the FIRST PART.

AND

Sorting Hat Technologies Private Limited, a private company incorporated under the provisions of the Companies Act, 2013 bearing CIN U72200KA2015PTC082063 and having its registered office at Maruti Infotech Centre, 3rd Floor, A-Block, Domlur, Koramangala Inner Ring Road, Bangalore- 560 071, India (hereinafter referred to as "**Company/Unacademy**", which expression shall, unless repugnant to the meaning or context thereof, be deemed to include its legal representatives and permitted assigns) of the SECOND PART.

Company and Service Provider shall hereinafter be individually referred to as "**Party**" and collectively as "**Parties**".

WHEREAS:

1. Service Provider is engaged in the business in connecting individuals to educational sources, subscriptions and materials ("**Services**") and the Company desires to engage with the Service Provider to provide such Services.
2. Service Provider has represented and warranted to Company that it has relevant authority, permit and licenses to provide the Service to Company and based on the said representation and warranties, Company has agreed to engage the services of the Service Provider on a non-exclusive basis and the Service Provider has agreed to provide the same based on the following terms and conditions.

NOW, THEREFORE, the Parties hereby agree as follows:

1. OBLIGATIONS OF THE PARTIES

1.1. SERVICE PROVIDER

1.1.1 The Service Provider will provide the Company Services on a non-exclusive basis as requested by the Company from time to time in accordance with the details provided in the Statement of Work ("**SOW**") or as communicated over email which shall be mutually accepted and agreed upon by both Parties.

1.1.2 The terms and conditions of the SOW shall be binding on both Parties and shall constitute an integral part of the Agreement.

1.1.3 The Service Provider will invoice the Company for the Service provided in accordance with the SOW or as communicated over email. The payment for the same shall be made in accordance with the terms and conditions mentioned in SOW or communicated over email.

1.2. COMPANY

Company shall process the payments of the Service Provider subject to submission of undisputed invoice and any other necessary documents in accordance with the payment structure given in the SOW. The Company shall make the agreed payment to the Service Provider for the Services provided by the Service Provider in accordance with the timeline agreed herein subject to Service Provider's provision of all necessary documents as required by Company to process the payment from time to time.

2. TERM & RENEWAL

This Agreement shall be valid and binding on the Parties from the Effective Date until 31st March 2023 unless the Agreement is terminated earlier by either Party in accordance with the provisions of this Agreement. The Agreement may be renewed by the Parties on expiry on mutually agreed terms.

3. TERMINATION & EFFECT OF TERMINATION

3.1 Termination at will: Either Party can terminate this Agreement by giving the other Party a prior written notice of 7(seven) days with or without providing any reason for such termination.

3.2 Termination for Cause

3.2.1 Either Party can terminate this Agreement by giving 5(five days prior notice to the other Party in the event of breach of any material provision of this Agreement by the other Party, provided that, during the 5(five) days period, the breaching Party fails to cure such breach or, should the breach not be curable within the said 5(five days period or the breaching Party has not initiated any steps to cure such breach.

3.2.2 If the Service Provider becomes insolvent, bankrupt, or enters receivership, dissolution, or liquidation, the Company may terminate this Agreement with immediate effect.

3.2.3 The Company may terminate this Agreement with immediate effect, in the event of a Change of Control of the Service Provider.

3.3 Effect of Termination:

3.3.1 In the event of termination as mentioned above or expiration of this Agreement, all covenants, and obligations of the Parties that by their nature should survive, shall continue post termination.

3.3.2 Termination of the Agreement shall not affect the payment liability of the Company to the Service Provider for all the Services provided by the Service Provider before the date of termination.

4. CONSIDERATION

4.1 In consideration of the Services provided by the Service Provider under this Agreement, the Company shall pay the Service Provider the consideration as agreed and described in detail in the SOW or as communicated over email.

4.2 All payments made under this Agreement are subject to taxes and applicable statutory deductions.

4.3 Payment shall be subject to submission of all relevant required documents by the Service Provider to the Company.

4.4 The Service Provider shall be responsible for any and all ordinary and reasonable expenses which it may incur in connection with the provision of the Services under this Agreement. The Company agreed to reimburse the Service Provider for all expenses that are pre-approved in writing by the Company.

5. CONFIDENTIAL INFORMATION

5.1 "**Confidential Information**" shall mean any confidential information data, know-how, employee data, or any other confidential information including all the leads and all the data/ content/ information provided by the disclosing Party ("**Disclosing Party**") to the receiving Party ("**Receiving Party**") herein under in writing, orally or in any other form, media whether or not marked as confidential or proprietary.

5.2 Notwithstanding the foregoing, Confidential Information shall not include information which:

- 5.2.1 Is known to the Receiving Party at the time or disclosure;
- 5.2.2 Is or becomes publicly known through no wrongful act of the Receiving Party ;
- 5.2.3 Is rightfully received by the Receiving Party from a third party without restriction of disclosure;
- 5.2.4 approved for release by Company;
- 5.2.5 Is disclosed pursuant to judicial order, requirement of a government agency or by operation of law.

5.3 The Receiving Party agrees that it will not disclose the Confidential Information to any third party and will not use the Confidential information other than for the performance of its obligation under this Agreement. The Receiving Party agrees that the Confidential Information shall at all times remain the sole property of the Disclosing Party and that the Receiving Party shall take all reasonable precautions to prevent any unauthorized disclosure of the Confidential Information by any of its officers, employee or any person that has access to the Confidential Information.

5.4 The Receiving Party agreed and understands that the Confidential Information constitutes valuable, special and unique assets of the business of the Company. Accordingly, the Receiving Party agrees that, in the event of any breach of the confidentiality obligations under this Agreement, in addition to any other remedies at law or in equity, Disclosing Party shall be entitled to equitable relief, including injunctive relief and specific performance.

6. REPRESENTATION AND WARRANTIES

6.1 Each Party represents and warrants to the other Party that:

- 6.1.1 It is duly organized and validly existing and in good standing under the laws of the jurisdiction of its organization;
- 6.1.2 It has the full corporate power and is duly authorized to enter into, execute and deliver this Agreement, and to carry out and otherwise perform its obligations thereunder;
- 6.1.3 This Agreement has been duly executed and delivered by the party, and is legal and valid, the obligations therein are binding upon such Party and so far as it is aware, the entry into, the execution and delivery of, and the carrying out and other performance of its obligations under this Agreement by such Party
  - 6.1.3.1 does not conflict with, or contravene or constitute any default under, any agreement, instrument or understanding, oral or written, to which it is a party, including, without limitation its certificate of incorporation or by-laws, and
  - 6.1.3.2 does not violate applicable laws or any judgment, injunction, order or decree of any Regulatory Authority having jurisdiction over it.
  - 6.1.3.3 The execution, delivery, and performance by it of this Agreement have been duly authorized by all necessary corporate action and will not result in a breach of or constitute a default under any material agreement, license, permit or other instrument or obligation to which it is a party.

6.1.4 This Agreement is a legally valid and binding obligation and is enforceable against it.

6.1.5 It is not under, and will not enter into, any obligation to any person, or entity, contractual or otherwise, that is conflicting or inconsistent in any respect with the terms of this Agreement or that would impede the diligent and complete fulfillment of its obligations.

6.2 Additional Representation and Warranties

6.2.1 Service Provider represents that he has all the requisite licenses, permit and authority to provide the Service under this Agreement and the said licenses, permit and authority shall be maintained and be valid during the term of this Agreement.

6.2.2 Service Provider represents that he shall comply with all statutory filings, compliances and record maintenances are required under applicable laws relating to the Service provided by the Service Provider under this Agreement.

6.2.3 Service Provider represents that it shall not use any of the Confidential Information provided herein for any other purpose other than as provided herein.

6.2.4 Service Provider represents and warrants to indemnify Company in case of any claims, loss or damages incurred by Company due to the Service Provider.

7. INDEMNIFICATION

Service Provider hereby agrees to indemnify and save Company including, where applicable, its affiliates, directors, officers, employees, and agents (each such party being an "**Indemnified Party**") harmless from and against and agree to be liable for any and all losses, claims, actions, suits, proceedings, damages, liabilities or expenses of whatever nature or kind, incurred by the Indemnified Party that arises out of:

7.1 breach of any of Service Providers obligations, covenants or representations and warranties under this Agreement; or

7.2 Violation of any applicable laws; or

7.3 Infringement of any third-party intellectual property rights.

8. LIMITATION OF LIABILITY

Notwithstanding anything to the contrary in this Agreement, the Company shall not be liable to the Service Provider for any indirect, incidental, special, statutory, consequential or punitive damages, including any claim for damages based upon lost profits, goodwill, reputation or lost business opportunity. The aggregate liability of the Company for any claims of breach of the Agreement or otherwise, under contract or tort, shall not exceed the actual amount due and paid by the Company under this Agreement in the previous 6 (six) months from the date the cause of action for such claim arose.

9. ABAC SANCTIONS AND ANTI-BRIBERY COMPLIANCE:

9.1 Each Party represents, warrants and covenants to the other Party that:

9.1.1 Neither such Party, nor any of its subsidiaries or affiliates, nor any director, officer, agent, Employee or other person associated with or acting on behalf of such Party, as the case may be, has: (i) used or shall use any funds received under this Agreement for any unlawful or illegal payment to any foreign or domestic political parties or such other organization bearing similar objective; and (ii) violated or is in violation of any applicable anti-corruption or anti-bribery laws.

9.1.2 Without limiting the foregoing, each Party represents and warrants that neither such Party nor any of its Affiliates have an exposure or relation or transactions with a

country, entity or individual that is the target of sanctions by the United States of America. Each Party shall immediately notify the other Party if it becomes aware of any situation that leads or may lead to a breach of this entire Clause.

9.2 Notwithstanding anything contained hereinabove, each Party shall have the right to immediately terminate or suspend performance under this Agreement if the other Party breaches this Clause 7. Each Party shall maintain true, accurate and complete books and records concerning any payments made to another Party by such Party under the Agreement, including on behalf of the other Party.

9.3 Each Party covenants and undertakes that it shall not make, authorize or tolerate to be made, in the performance of this Agreement, any payment, loans or gifts, or promises or offers of payments, loans, gift, of any money or anything of value, directly or indirectly, to or for the use or benefit of any Employee of the other Party or of its agent, Affiliate or associate etc.

10. DATA PROTECTION

10.1 Each Party hereby represent and warrant that it shall fulfil all legal obligations connected with the processing of Personal data/information (*defined later*) obtained from the users based on this Agreement, in particular, it implements appropriate safety standards and measures to protect obtained Personal data/information.

10.2 Each Party shall implement and maintain a comprehensive written information security program that contains appropriate security measures to safeguard the Personal data/information of the shareholders, employees, directors and/or officers that the Party receives, stores, maintains, processes or otherwise accesses in connection with this Agreement. For these purposes, "Personal data/information" shall mean (i) an individual's name (first initial and last name or first name and last name), address or telephone number plus (a) social security number, (b) driver's license number, (c) government issued identification card number, (d) debit or credit card number, (e) financial account number or (f) personal identification number or password that would permit access to a person's account or (ii) any combination of the foregoing that would allow a person to log onto or access an individual's account. Notwithstanding the foregoing "Personal data/information" shall not include information that is lawfully obtained from publicly available information, or from federal, state or local government records lawfully made available to the general public.

10.3 Each Party shall ensure that all data arising out of or in relation to this Agreement shall be stored solely in India and shall ensure due compliance with Applicable Laws, regulation, notification, substantive or procedural laws of India, including all legislations, acts, rules, notifications, laws, statutes, orders, decrees, judgments, injunctions, ordinances, directives, directions, circulars, regulations, codes, requirements, permits, licenses, approvals, instructions, standards of any Indian governmental instrumentality, agreements with any regulatory or governmental authority, relating to data localization and data privacy.

11. GOVERNING LAW AND DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of India, without reference to principles of conflict of laws and the courts in Bangalore shall have exclusive jurisdiction to determine any disputes arising out of, under, or in relation to, this Agreement. In the event of any dispute arising out of, under, or in relation to, this Agreement, the Parties agree to submit such dispute to arbitration by a sole arbitrator appointed jointly by both Parties, failing which such arbitrator shall be appointed by recourse to the provisions of Section 11 of the Arbitration and Conciliation Act, 1996. Such arbitration shall be in accordance with the rules framed under the provisions of the Arbitration and Conciliation

Act, 1996 (which rules are deemed to be incorporated in this Agreement by reference herein) and shall be held in Bangalore. All proceedings of such arbitration shall be in the English language. The arbitral awards rendered shall be final and binding and shall not be subject to any form of appeal. The successful Party may seek to enforce the award in an appropriate jurisdiction, including India. Each Party shall bear their own costs and expenses, incurred in connection with the arbitration proceedings. Nothing herein shall preclude either Party from seeking interim or permanent equitable or injunctive relief, or both, from the courts at Bangalore, India which shall have exclusive jurisdiction to determine any dispute arising under this Agreement. The pursuit of equitable or injunctive relief shall not be a waiver of the right of the Parties to pursue any remedy for monetary damages through the arbitration.

12. MISCELLANEOUS

12.1 **Entire Agreement:** This Agreement constitutes the entire agreement between the Parties and supersedes all prior written or oral and all contemporaneous oral agreements, understandings, and negotiations with respect to the subject matter hereof.

12.2 **Amendment & Waiver**: This Agreement may not be amended or modified unless in writing by the Parties hereto, and no condition herein (express or implied) may be waived unless waived in writing by each Party to whom the condition is meant to benefit.

12.3 **Headings**: The section headings herein are for the convenience of the parties only and shall not affect the construction or interpretation of this Agreement.

12.4 **Notice**: All notices and other communications given or made pursuant to this Agreement shall be in writing and shall be deemed effectively given: (a) upon personal delivery to the Party to be notified, (b) when sent by confirmed electronic mail or facsimile if sent during normal business hours of the recipient, and if not so confirmed, then on the next business day, (c) five (5) days after having been sent by registered or certified mail, return receipt requested, postage prepaid, or (d) one (1) day after deposit with a nationally recognized overnight courier, specifying next day delivery, with written verification of receipt. All communications shall be sent to the address mentioned at the beginning of the Agreement.

12.5 **Severability**: If any term or provision of this Agreement is invalid, illegal or incapable of being enforced by any law or public policy, all other terms and provisions of this Agreement shall nevertheless remain in full force and effect so long as the economic or legal substance of the transactions contemplated hereby is not affected in any manner materially adverse to any party. Upon such determination that any term or other provision is invalid, illegal or incapable of being enforced, the parties hereto shall negotiate in good faith to modify this Agreement so as to effect the original intent of the parties as closely as possible in an acceptable manner in order that the transactions contemplated hereby are consummated as originally contemplated to the greatest extent possible.

12.6 **Assignment**: Neither this Agreement nor any of the rights, interests or obligations hereunder shall be assigned by any of the Parties hereto (whether by operation of law or otherwise) without the prior written consent of the other Party.

12.7 **No Agency**: The relationship between Parties shall be on principal-to-principal basis, and nothing in this Agreement makes either Party the agent or legal representative of the other Party for any purpose.

12.8 **Counterparts**: This Agreement may be executed in any number of counterparts, each of which shall for all purposes be deemed to be an original and all of which shall together constitute but one and the same instrument.

IN WITNESS WHEREOF the Parties hereto have duly executed this Agreement as of the date and year hereinabove first written.

For, Sorting Hat Technologies Private Limited	**For Service Provider**
Tony Mathew (April 06, 2023, 8:28 GMT)	R Naveen (April 04, 2023, 4:28 GMT)
Authorized Signatory: Tony Mathew Designation: Associate General Counsel & VP, Legal	Name: Dr. R Naveen Designation: Principal

STATEMENT OF WORK

This Statement of Work ("**SOW**") is made in pursuant to, and in furtherance of the Agreement between the Parties. This SOW is subject to the terms and conditions in the Agreement between the Parties and governed thereof. Any term not defined herein shall have the meaning as specified in the Agreement. In case of any conflict or inconsistency between the SOW and the Agreement, the terms of this SOW shall prevail.
This SOW is subject to the terms and conditions herein:

A. Effective Date of SOW: This SOW shall be effective from 21st March 2023 to 31st March 2023.

B. Services:

1. The Service Provider shall provide the following promotional services ("**Services**") to the Company. Service Provider shall:
   - 1.1 Allow the representatives of the Company and its educator to enter its premises and enable the Company's approved educator to conduct one (1) interactive seminar with its network of students in the month of March 2023, the specific details of which shall be communicated by the Company via email or any other mode of communication.
   - 1.2 Service Provider shall use promotional material ("**Promotion Material**") as provided and pre-approved by Unacademy and the creatives shall adhere to the Brand Guidelines as attached in **Annexure A.**
   - 1.3 Any other services provided by Service Provider which goes beyond the scope of Services shall be mutually discussed and agreed by the Parties in writing.
   - 1.4 agrees and allows the Company to conduct offline seminars in its premises to the Service Provider's network of students, in accordance with the details that shall be communicated by the Company via email or any other mode of communication.

2. The Service Provider is granted a limited, non-exclusive, non-sub-licensable, non-transferable, and revocable license to use Company's logo/trademark as per **Annexure A** only for the purposes as stated herein and only for the period stated above. On the expiry of the period or completion of the purpose of this Agreement or cancellation by Company the rights granted above shall also stand extinguished.
3. Usage of Company logo and/or trademark shall be in accordance with the policies, brand-usage guidelines, placement, size, formats, dimensions, style, standards, directions and any other specifications as per **Annexure A**. Company may refuse to make payments or cancel the advertisements in the event Company's brand usage guidelines are not followed or the logo and/or trademark and/or advertorial are not displayed/published as per guidelines.
4. The Service Provider shall deliver the Services in the manner and format as communicated by the Company via email or any other mode of communication.
5. The Company shall provide approval of promotional creatives and content provided by the Service Provider within the time schedule communicated by Company via email or any other mode of communication Service Provider.

C. <u>Consideration</u>:

1. The Service Provider shall be paid one-time fee of INR 15,000/-(Indian Rupees Eighteen Thousand only) exclusive of GST, upon the completion of the Services for the Term of this SOW.

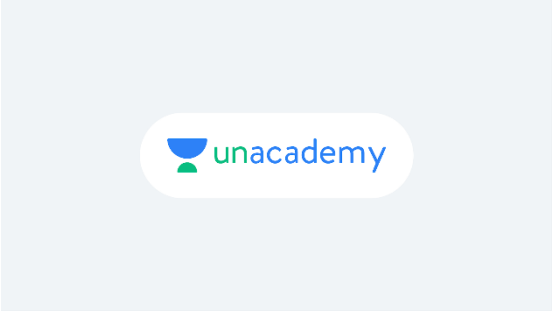
2. Pro-rata deductions shall be made for any Services that has not been accepted by the Company for deviation from the quality standards.

3. All the payments made under this Agreement shall be subject to applicable statutory deductions.

4. Payment shall be made within 30 days from the date of invoice, against all undisputed invoices and post-submission of all the required documents for the Services that has been provided. The Service Provider shall raise invoices on the last working day of every month for the Services delivered against the agreed deliverables.

<u>ANNEXURE A</u>
Brand Guidelines

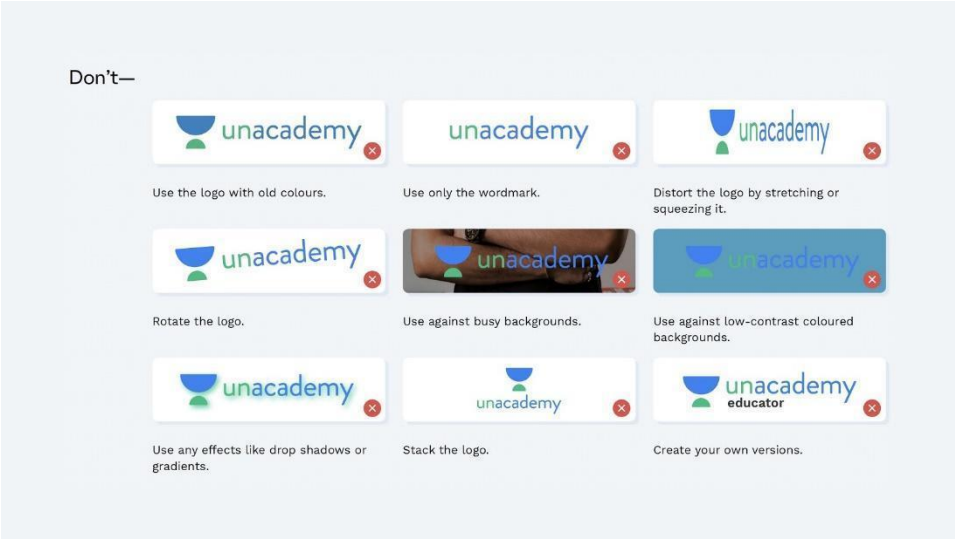
Logo



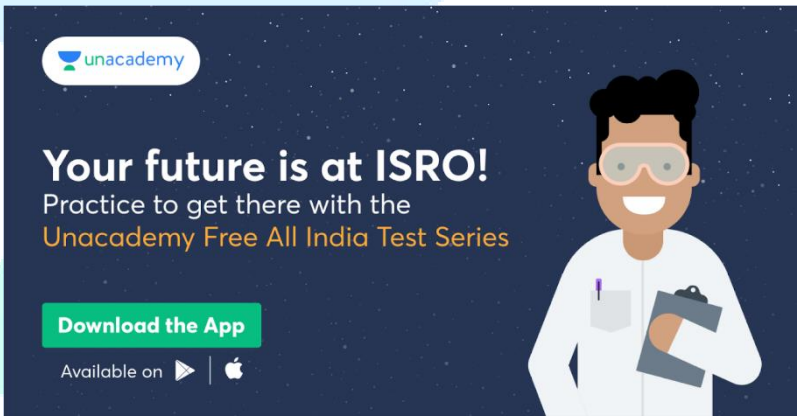
Please use this logo and do not distort it or use it without the rounded rectangle for any promotion collateral. Place the logo in the top centre or top left corner of the creative.

Preserving legibility in both print and digital formats is crucial.

- In Print— Our logo should not be smaller than 0.75” in width in print.
- On Screen— Our logo should not be smaller than 125px in width on screen.



Usage Examples:



Brand Mark | Glyph

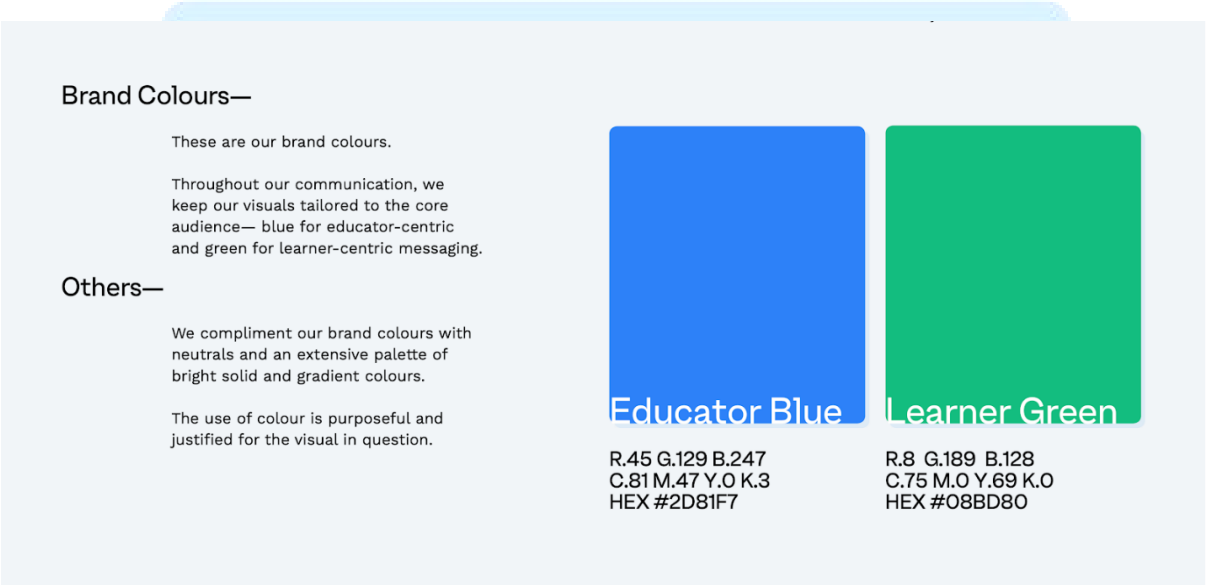
This is our logo stripped of its wordmark. Use it only when and where space is limited. For instance, when the logo has to be within a square or circular, the use of the glyph is allowed.

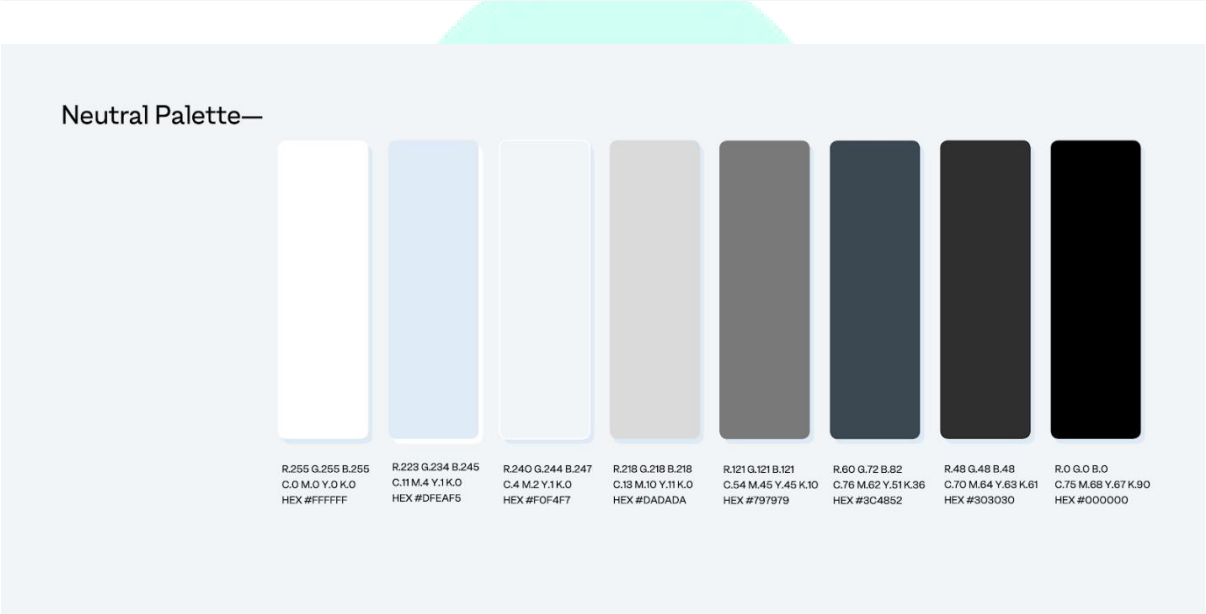
Link for downloading the assets:
https://drive.google.com/drive/u/0/folders/1UCg03t-dVWNjdszkcHfPkAfZVgFzS4Fl

Note: For print, please use the CMYK files provided by the Unacademy team. For all digital promotions, please use the RGB version of the logo.

Colour Palette

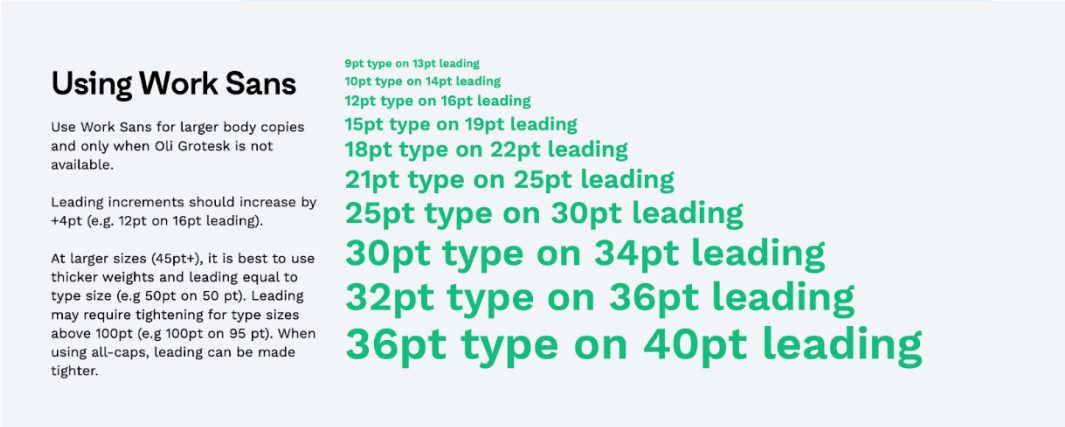
Please use the brand colors for primary communication and use the neutral palette for backgrounds. We prefer using F0F4F7 for the background.





Typography

Oli Grotesk is the brand typeface.
We require a license to use this typeface in print or on screen. Please contact the design team if you need a license. If not, kindly use our free alternative - Work Sans.



Work Sans is a free, open-source typeface available on Google Fonts. The font family is available in nine weights but please restrict your usage within the ExtraLight, Regular, SemiBold and ExtraBold weights. This typeface is versatile for print and screen.

You can download the Work Sans font files free here: fonts.google.com/specimen/Work+Sans

SPOTDRAFT

AUDIT TRAIL

CONTRACT NAME	SHT- Ashoka Women's Engineering college- SERVICE AGREEMENT- 28032023
CONTRACT ID	0d98d1a9-f9c5-484c-a91a-e9f2477733ff
STATUS	Executed

CONTRACT HISTORY

SENT	Sent for Signature to **Tony Mathew** (tony.mathew@unacademy.com) and **R Naveen** (principal@ashokacollege.in) by **Shivani Ganesh** (shivani.ganesh@unacademy.com).	**28 March, 2023 12:42:18 UTC** IP: 14.97.89.74
SIGNATORY	Signatory re-assigned from **R Naveen** (principal@ashokacollege.in) to **R Naveen** (principal@kvsw.in).	**04 April, 2023 03:50:58 UTC** IP: 119.82.123.97
SIGNED	Signed by **R Naveen** (principal@kvsw.in).	**04 April, 2023 04:28:48 UTC** IP: 117.205.73.94 Location unavailable
SIGNED	Signed by **Tony Mathew** (tony.mathew@unacademy.com).	**06 April, 2023 08:28:53 UTC** IP: 106.79.196.187 Bangalore Division, Karnataka, India
EXECUTED	This document has been signed and executed by all parties.	